



DEPARTMENT OF THE NAVY
NAVAL RESEARCH LABORATORY
4555 OVERLOOK AVE SW
WASHINGTON, DC 20375-5320

Justification for Other than Full and Open Competition Under Simplified Procedures for Certain Commercial Items in Accordance with Federal Acquisition Regulation (FAR) 13.5	PURCHASE REQUEST NO. 57-2001-26
	J&A NO: J&A13.501- TS01
	Estimated Cost: [REDACTED]

On the basis of the following, I, as the Contracting Officer, hereby approve the use of a sole source proposed contractual action pursuant to the authority of :

☒ **41 U.S.C. 1901** ☐ **41 U.S.C. 1903**

1. The U.S. Department of Navy; Naval Research Laboratory Contracting Division proposes to enter into a sole source contract with Herrick Technology Laboratories, Inc., under simplified procedures for certain commercial items included in FAR subpart 13.5.

2. The nature and/or description of the action being approved, i.e., sole source under procedures for certain commercial items in accordance with FAR 13.5.

The sole source requirement is for [REDACTED] HTLx-U four-channel receiver/digitizer units, manufactured by Herrick Technology Laboratories, Inc. These receivers are essential components in the [REDACTED] system, which was developed by NRL [REDACTED] and is under configuration control with an approved final product baseline. The units are directly integrated into the system.

[REDACTED]

3. A description of the supplies and/or services required, including the delivery schedule and/or the period of performance (inclusive of all option periods), and the estimated dollar value of the acquisition.

The current procurement action requires NRL to acquire [REDACTED] HTLx-U101150004 Miniature Quad Channel V/UHF/Microwave Transceiver [REDACTED]

[REDACTED]

4. The statutory authority permitting sole source.

The authority for permitting other than full and open competition is 41 U.S.C. 1901(e)(2), implemented by FAR 13.501(a).

☒ **41 U.S.C. 1901** ☐ **41 U.S.C. 1903**

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring use of the authority.

No other vendor produces a receiver that is a drop-in replacement for the HTLx-U within the established [REDACTED] system. An alternative product would lack the specific firmware and hardware integration required for [REDACTED]

compatibility with the existing system software, mechanical design, operational documentation, and maintenance procedures. Therefore, no other known product possesses the essential feature of being compatible with the existing, fielded [REDACTED] hardware and software baseline, making it impossible to integrate an alternative without a complete and costly re-engineering of the entire system.

6. A description of efforts made to ensure offers/quotes are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized in FEDBIZOPPS (as required by FAR 5.2) and, if not, which exception under 5.202 applies.

As previously stated, HTL is the sole manufacturer of these items (Miniature Quad Channel V/UHF/Microwave Transceivers), and is the only available vendor to meet the government's requirements.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the contracting officer that the anticipated cost to the government will be fair and reasonable.

[REDACTED]

[REDACTED]

The Contracting Officer will determine that the cost to the government for the equipment covered by this J&A is fair and reasonable through the methods described at FAR 13.106-3(a)(2).

8. A description of the market research conducted and the results or the reason market research was not conducted.

We have already conducted preliminary market research by engaging with major receiver vendors, [REDACTED]. At present, none of these vendors offer a receiver that meets the required technical specifications for the [REDACTED] system. While some vendors indicated they may have products with appropriate specifications available in approximately two years, this timeline does not meet the current urgent requirement. Crucially, even if a technically compliant receiver were available from another vendor, it would not match the specific software, firmware, and mechanical integration of the [REDACTED] HTLx-U. Integrating an alternative would require a complete and costly re-engineering of the entire system and introduce unacceptable mission risk in such a short timeline.

For future acquisitions, particularly during major system upgrades or hardware refresh cycles, we will continue to monitor the market. When the supporting infrastructure of the [REDACTED] system is upgraded, a full and open competition will be conducted, contingent on the availability of alternative receivers that meet all technical and integration requirements.

9. Any other facts supporting the use of sole source.

Urgent Mission Requirements: The customer has mandated an extremely short delivery schedule [REDACTED]. Given the standard six-month lead time for the HTLx-U, it is not feasible to identify, procure, integrate, and test an alternative receiver without jeopardizing the critical mission deadline.

Operational Risk Mitigation: The HTLx-U is a well-tested and proven component [REDACTED]. Introducing a new, untested receiver would carry significant operational risk, potentially leading to system instability, unreliable data, and mission failure.

Existing System Limitations: The current infrastructure and other components of the [REDACTED] system are designed for the [REDACTED] provided by the HTLx-U. Investing in a [REDACTED] receiver at this time would offer no performance benefit and would represent an unnecessary increase in cost, [REDACTED].

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

N/A

11. A statement of any actions the agency will take to remove or overcome any future barriers to competition before any subsequent acquisition for the supplies or services required.

For the reasons stated in paragraph 5, competition is not currently available for this requirement. However, the Tactical Electronic Warfare Division (Code 5700) routinely monitors the commercial marketplace to stay informed of alternatives that may be used to support future work of this nature at NRL. If another potential source emerges or new technology is developed that can advance future research, NRL will assess whether competition for future requirements is technically feasible and reasonably priced.

CERTIFICATION AND APPROVAL

REQUIREMENTS COGNIZANCE

I certify that the facts and representations under my cognizance that are included in this justification and that form a basis for this justification are complete and accurate. I understand that the processing of this justification precludes full and open competition.

SIGNATURE(Requestor) (Print name/title)

CODE

PHONE

DATE

5723

LEGAL SUFFICIENCY REVIEW

On the basis of the justification, I determined that it is legally sufficient.

SIGNATURE(Legal) (Print name/title)

CODE

PHONE

DATE

1008.1

CONTRACTING OFFICER (IF > \$150,000 AND <700,000): (Procurement Office use Only)

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. On the basis of the justification, I hereby approve the use of a sole source proposed contractual action pursuant to the authority of ☐ 41 U.S.C. 1901 ☐ 41 U.S.C. 1903

SIGNATURE(Contracting Officer) (Print name/title)

CODE

PHONE

DATE

1320

ACTIVITY ADVOCATE FOR COMPETITION APPROVAL (IF > \$700,000 AND < \$13,500,000):

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$13.5 million, this review serves as approval.

SIGNATURE(Competition Advocate) (Print name/title)

CODE

PHONE

DATE

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO THE CONTRACTING OFFICER IDENTIFIED ABOVE.